

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Campos	Team: Squad #16	CCRB Case #: 201710515	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 12/15/2017 11:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 6/15/2019	Precinct: 34
Date/Time CV Reported Sat, 12/16/2017 12:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/21/2017 12:06 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			034 PCT
2. POM Calvin Reyes	02199	954269	034 PCT
3. POM Fernando Rodriguez	27943	954282	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Calvin Reyes	Abuse: Police Officer Calvin Reyes threatened to arrest § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Force: An officer used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . POM Fernando Rodriguez	Abuse: Police Officer Fernando Rodriguez threatened to arrest § 87(2)(b)	C . Complainant Uncooperative

Case Summary

On December 16, 2017, § 87(2)(b) filed this complaint on behalf of herself with IAB via telephone. The CCRB received the case on December 21, 2017, via IAB Log#2017-50207.

The investigation obtained video evidence of the incident in the form of body-worn cameras from the involved officers. The footage depicts both Police Officer Calvin Reyes and Police Officer Fernando Rodriguez informing § 87(2)(b) that she could be arrested if she continued to refuse to pay her taxi fare, as she had for the preceding minutes of the recording. Officer Reyes is depicted removing § 87(2)(b) from the vehicle and placing her in handcuffs.

When § 87(2)(b) filed her complaint she provided her phone number and home address. § 87(2)(b)'s email address was provided by her voicemail greeting message during a call made to her on January 2, 2018. On January 2, 2018, an ADR eligible please call letter was sent to § 87(2)(b)'s home address with a CCRB pamphlet and to her email address. On January 24, 2018, a second ADR eligible please call letter was sent to § 87(2)(b)'s home address with a CCRB pamphlet. A third letter was sent on February 12, 2018. § 87(2)(b) was not sent an email on January 24, 2018, because she stated she did not wish to receive emails during a call made on January 8, 2018.

On January 2, 2018, a call was made to § 87(2)(b). The call was unanswered and a voicemail message was left requesting a call back. On January 8, 2018, § 87(2)(b) was reached via telephone. At the time of the call § 87(2)(b) could not speak and a follow up call was scheduled for later that day.

Later that day, § 87(2)(b) called back. During the call § 87(2)(b) refused to appear at the CCRB to provide a sworn statement because she had already provided a statement to IAB. § 87(2)(b) was informed that a sworn statement was required in order to conduct a full investigation and she would have to appear at the CCRB in order to provide a sworn statement. § 87(2)(b) was asked if she wished to withdraw her complaint and she stated that she did not wish to do so. § 87(2)(b) was informed that if she did not wish to provide a sworn statement and she did not wish to withdraw her complaint, then the complaint would be closed as complainant uncooperative. § 87(2)(b) took offense to at being described as uncooperative. It was explained to § 87(2)(b) that if the case was closed as complainant uncooperative when a sworn statement was not obtained and it was not reflective of her character. § 87(2)(b) stated that she only wanted the subject officers to know that she took issues with the way that they worked. § 87(2)(b) was informed that the subject officers would have to appear to provide statements during a full investigation, but that a sworn statement was required before the case could move forward to that point. § 87(2)(b) requested more time to think about how she wished to proceed and noted that she would not be available for a follow up call from January 10, until January 23, 2018, because she was traveling. A follow up phone call was scheduled for January 9, 2018.

On January 9, 2018, § 87(2)(b) was reached via telephone. § 87(2)(b) reiterated that she did not wish to appear at the CCRB to provide a sworn statement, and that she did not wish

for the complaint to be closed as complainant uncooperative. § 87(2)(b) requested more time to think about how she wished to proceed and a follow up call was scheduled for January 23, 2018.

On January 19, 2018, § 87(2)(b) called the undersigned investigator. When the undersigned investigator identified himself, § 87(2)(b) stated that she called the wrong number and ended the call. § 87(2)(b) did not identify herself; she was identified by her caller ID.

A follow up call was placed to § 87(2)(b) on January 24, 2018. § 87(2)(b) did not answer the call, and a voicemail message was left requesting a call back. § 87(2)(b) called back on January 26, 2018. § 87(2)(b) again refused to appear at the CCRB to provide a sworn statement and it was explained to her again that the complaint a full investigation would not take place without a sworn statement. § 87(2)(b) asked if the complaint would always be on file and she was informed that it would be. The call was ended unexpectedly, and § 87(2)(b) was called back immediately. § 87(2)(b) refused again to appear at the CCRB to provide a sworn statement. § 87(2)(b) stated that the information she provided to IAB was enough. § 87(2)(b) was informed multiple times that she would have provide a sworn statement to the CCRB in order for a full investigation to take place. A follow up call was scheduled for January 31, 2018 because § 87(2)(b) requested more time to think about how she wished to move forward. § 87(2)(b) was informed that cases could not remain open indefinitely, and that if she did not answer a call placed to her on January 31, 2018, then the case would be closed without a full investigation.

Two calls were placed to § 87(2)(b) on January 31, 2018. Both of the calls were unanswered, and voicemail messages were left requesting § 87(2)(b) call back. § 87(2)(b) called after business hours on January 31, 2018, and left a voicemail message stating that she was returning the previous calls. On February 1, 2018, a call was made to § 87(2)(b) the call was unanswered and a voicemail message was left requesting a call back.

§ 87(2)(b) has not made any attempt to reach the undersigned investigator since January 31, 2018, despite a total of eight phone calls, three letters, one email, and this case being open for 53 days. Because § 87(2)(b) refused to appear at the CCRB to provide a sworn statement, despite being informed multiple times that a sworn statement was required to conduct a full investigation, it recommended that **Allegation A, B, and C** be closed as **complainant uncooperative**.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date